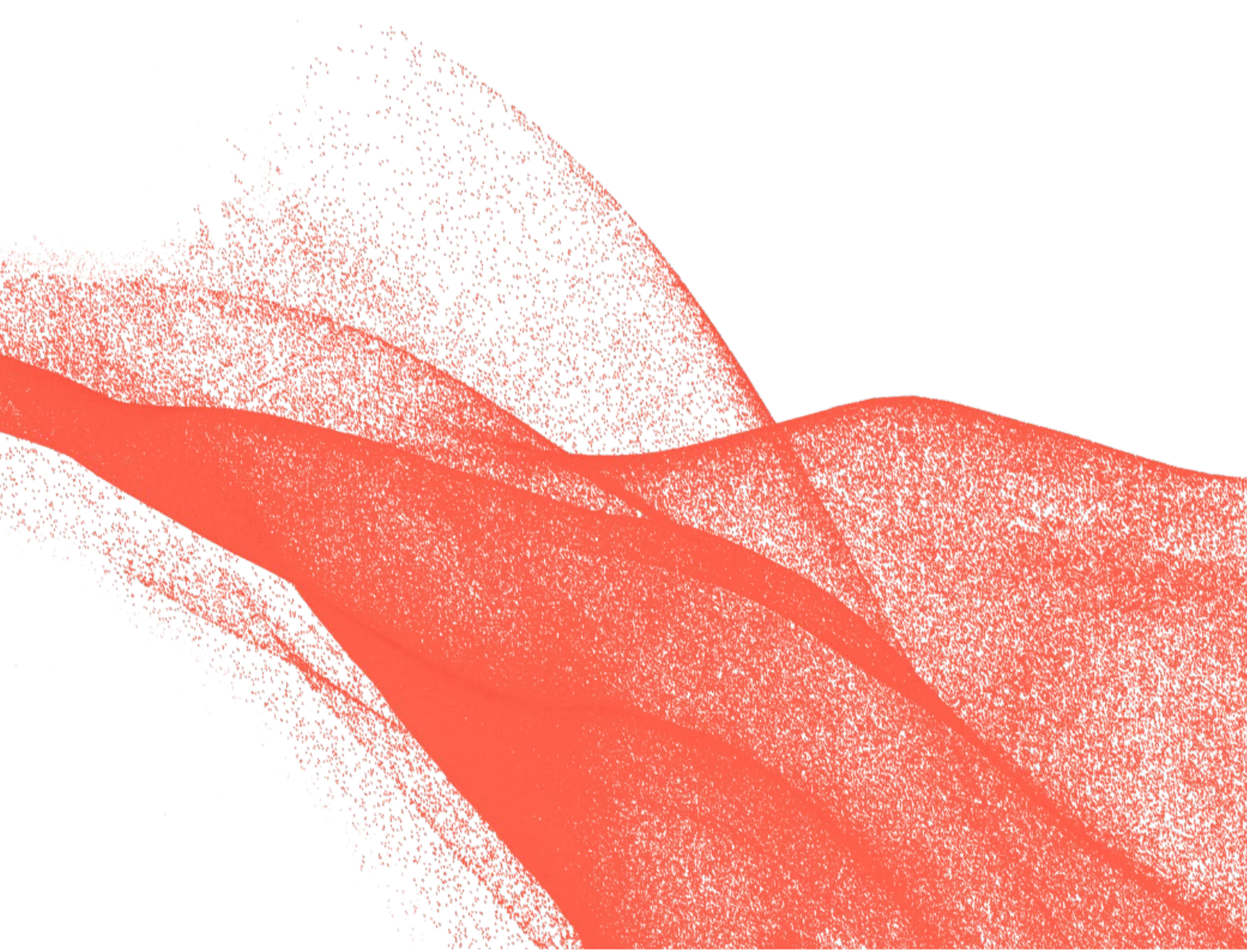


Global Data Privacy Notice for Employees

Version 1.0 | November 14, 2022



Copyright Information

This document is the exclusive property of LTM Limited (LTM); the recipient may not copy, transmit, use or disclose the confidential and proprietary information in this document by any means without the expressed and written consent of LTM. The recipient of this document must be aware of the confidentiality of LTM's practices and procedures; and that these documents can only be used for responding to LTM's operations methodology.

Revision History

Please keep the latest version on top

Ver	Change Description	Sections	Date	Author	Reviewer	Approver
1.0	Initial Document	All	14 th November, 2022	Data Privacy Office	Legal	Data Privacy Officer

References

For more details, please refer to the following documents:

No	Document Name	Ver	Location
1.	LTM General Data Privacy Statement	1.0	https://www.ltm.com/general-privacy-policy/
2.	LTM Cookie Policy	1.0	https://www.ltm.com/cookie-policy/

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Introduction

For the purposes of your employment with LTM Limited, a company incorporated in India having its registered address at Gate No. 5, L&T Technology Center, Saki Vihar Road, Powai, Mumbai – 400072, which has several branches and subsidiaries around the world (“LTM” or the

“Company” or “we” or “us” or “our”), we collect, hold, process and transfer Personal Data (as defined below) about you as it is necessary for the administration, management and performance of the purpose (as detailed in Section 6) in our capacity as a data controller.

Protecting the privacy rights of data subjects and safeguarding their Personal Data is now being treated as a basic right of an individual and a legal requirement in many parts of world. LTM, being a global organization, respects the privacy of data subjects and is committed to complying with the applicable data privacy laws and legislations (including but not limited to EU General Data Protection Regulation 2016/679 (the “GDPR”), the GDPR as saved into UK law (the “UK GDPR”) (references in this Notice to GDPR also include UK GDPR) California Consumer Privacy Act, California Privacy Rights Act, The Privacy Act 1988 (Australia) including the Australian Privacy Principles (APP), Data Protection Act 2018 (UK), Information Technology Act 2000 read along with the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 and Personal Data Protection Act 2012 (Singapore), the Federal Law on Protection of Personal data held by Private Parties and its Regulations (Mexico) (the “LFPDPPP, in its Spanish acronym), the Swiss Federal Act on Data Protection 1992 and as of September 1, 2023, the Swiss Federal Act on Data Protection 2020, the Federal Decree-Law No. 45/2021 on the Protection of Personal Data (UAE), the Protection of Personal Information Act 4 of 2013 (South Africa), the Canadian Personal Information Protection and Electronic Documents Act (PIPEDA) and any substantially similar provincial law, Personal Data (Privacy) Ordinance Cap. 486 (Hong Kong), the Personal Information Protection Law (“PIPL”) (China), the Privacy Act 1988 (Cth) (Australia), and other applicable privacy laws to the extent that they apply to LTM's data processing and business operations) (the “Data Privacy Laws”).

We treat your Personal Data in accordance with the Data Privacy Laws and the purpose of this notice is to make you aware of:

- Which Personal Data we Collect?
- How we collect and Use Your Personal Data?
- Purpose and lawful basis of Processing
- How we Share and Disclose Personal Data?
- What Rights do you have?
- How do we keep Personal Data secure?
- How to get in touch with us regarding Data Privacy?

Scope

Applicability: This Notice applies to all current and former employees of LTM. This Notice does not form part of any contract of employment or other contract to provide services. It covers Personal Data and Personal Information disclosed by you which is Processed by LTM during the course of your interaction with us.

Role: LTM acts as a Data Controller (as defined below) with respect to any Personal Data and Personal Information it holds about you. LTM is responsible for ensuring that it uses Personal Data and Personal Information in compliance with the Data Privacy Laws. The relevant entities that may act as the Data Controller are listed in Section 9 of this Notice. We need to keep and process data about you for acceptable business and security purposes, for complying with legal obligations and for record keeping purposes. The data we hold, and process will be used for management, operational, employment related processing and administrative purposes only. We will keep and use it to enable us to run the business and manage our relationship with you

effectively, lawfully and appropriately, whilst you would be associated with us, at the time when your association ends and after you have left us.

Definitions

The meaning of some of the terms in use in the Notice are explained below:

Term	Description				
Personal Data	Means any information relating to an identified or identifiable natural person (“Data Subject”); Any information which constitutes “personal data” or “personal information” of Data Subject under the applicable Data Privacy Laws, including information which can reasonably associate or link to an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person. This includes the defined term of personal information as defined in Canadian data protection laws. Personal Data includes ‘personal information’ as defined in the Privacy Act 1988 (Cth) (Australia). With respect to Chinese residents, Personal Data does not include information that has been anonymized. LTM does not collect Personal Data from Chinese residents that are under the age of 14.				
Personal Information (applicable only to California residents) (under US laws)	Information pertaining to residents of California that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household, but does not include information that is lawfully made available from federal, state or local government records, nor does it include “de-identified” or “aggregate customer information” as those terms are defined pursuant to the CCPA. LTM does not collect Personal Information from California residents that are under the age of 16.				
Sensitive Personal Data (including specific categories of Personal Data under GDPR)	Pursuant to Article 9(1) GDPR, specific categories of personal data refer to the processing of personal data revealing racial or ethnic origin, or political opinions, or religious or philosophical beliefs, or trade union membership, or the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, or data concerning health or data concerning a natural person's sex life or sexual orientation. Sensitive Personal Data includes ‘sensitive information’ as defined in the Privacy Act 1988 (Cth) (Australia).				
	For Mexico only: In addition to the preceding, any other categories of personal data that touch the most private areas of the data subject's life, or whose misuse might lead to discrimination or involve a serious risk for the data subject are also considered as sensitive data.	For Switzerland only: The definition of “a natural person’s sex life or sexual orientation” also includes the intimate sphere (instead of the sexual life/orientation), social security measures, administrative or criminal proceedings and administrative or criminal sanctions.	For Chinese residents only: In addition to the preceding, the term also includes other Personal Data of which the leakage or illegal use could easily lead to the violation of the personal dignity of a natural person or harm to personal or property safety, such as information on biometric identification, financial accounts, personal whereabouts and personal information of minors under the age of 14.	With respect to California residents, in addition to the preceding, the term also includes government identification numbers, financial numbers or financial account access credentials, precise geolocation, and the contents of communications to which LTM is not an intended recipient.	In Denmark only: Information on social security numbers and criminal offences are not considered as sensitive personal under the GDPR but constitutes its own category of information. Processing of this requires specific legal basis under the Danish data protection act.
Process, Processes, Processed or Processing	Means any operation or set of operations which is performed on Personal Data or Personal Information, or on sets of Personal Data or Personal Information, whether or not by automated				

	means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.
Data Controller	Means the natural or legal person, organization, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by national or applicable laws, the controller or the specific criteria for its nomination may be provided for by national or applicable laws.
Data Processor	Means a natural or legal person, organization public authority, agency or other body which processes Personal Data on behalf of the Data Controller

Please refer to the Global Data Privacy Policy (External): https://www.ltm.com/privacy_policy/ for terms that have not been defined above. Please also refer to the relevant jurisdiction specific Data Privacy Laws for all other terms.

What Personal Data is Collected?

Your Personal Data is collected and processed by LTM for employee administration and management purposes which are as follows:

- Identification Information including but not limited to name, age, date of birth, email address, home address, contact details, government-issued identification numbers, national identifiers, photographs, location information, citizenship, nationality, marital status, signature.
- Educational and professional details including but not limited to highest education, certifications, previous employment history.
- Compensation and Benefits Information including but not limited to details of salary and benefits, bank account details, salary reviews, records relating to holiday and other leave, working time records.
- Where required for your role, and permitted or required by applicable laws, Personal Data such as OFCCP data, diversity data shall be collected
- Information relating to your health, limited to physical examination results, accident and injury reports, disability status, wellbeing of its personnel, being agreed that no biometric and/or genetic data will be collected and processed without your express consent or legal authorization when consent is not a valid legal basis for processing.
- Information about your performance at work, including but not limited to performance evaluations, as well as performance related feedback expressed by your colleagues, individuals who you manage, supervisors, and clients of LTM, references obtained from your previous place of work.
- Travel, immigration and expenses information including but not limited to passport, visa details, corporate card transactions, expense details, supporting bills, work authorization documents.
- Learning and development information including but not limited to trainings, certifications, attendance and assessment records.
- Information collected as part of surveillance and monitoring such as video surveillance data, physical access logs, activity logs from systems and communication channels (if applicable).
- Other information, such as information found from public sources, government agencies and portals, business networks, social media platforms and referrals as well as information related to reference checks, depending on the position you are applying for, and where necessary for the recruitment activities.
- Information relating to your family members (for benefits administration, if voluntarily provided by you), travel, visa and work permit (in case of expatriate) and visiting LTM premises;

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- Background verification reports including educational, previous employment, dual employment, criminal data and credit history, where permitted by applicable law.
- To carry out activities relating to employment with us (including, but not limited to, joining formalities, employee gifts and awards;
- Communication (including but not limited to crises communication, awareness, in case of emergency);
- For the purposes of fulfilling a legal obligation;
- For organizational initiatives;
- Vaccination details (when permitted or required by the applicable law) to protect vital interests and for compliance with legal obligations.

How we collect your Personal Data/ Personal Information / Sensitive Personal Data

LTM collects Personal Data about employees through application, forms, intranet applications, physical copies, government authorities, vendors, emails and interviews as a part of their employment. Personal information with supporting documents is also collected during the LTM joining formalities, on-boarding process and during the course of your employment. This information would be collected by us in a number of ways through multiple channels while joining our organization and over time during our relationship with you:

- Directly from you (when you contact any LTM's representative via the intranet platform or by telephone, email or in person). We will collect additional Personal Data during job-related activities throughout the period you are working for LTM, via the intranet portal and other means as listed above.
- From third parties (through recruitment agencies, background verification agencies, former employers, employment agencies, credit reference agencies, medical clinics), which may also include public sources such as professional networking platforms.
- We may also receive Personal Data/ Personal Information from other sources such as government agencies and portals, business networks and agencies, social media platform and referrals.

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Purpose and legal basis of Processing

Personal Data is stored and Processed by us in the following ways and for the following lawful purposes:

- In case of an application for a role with us, to review and process a job application with us and (only where legally permissible and where strictly necessary to assess the suitability for the relevant role) to conduct background screening checks on the applicant including but not limited to the previous employment, criminal convictions, education, dual employment and other relevant checks (only when permitted or required by the applicable law);
- To carry out activities relating to employment contract with us (including, but not limited to, onboarding formalities, processing salary, administering benefits, managing and providing training relevant to the employee's role and managing performance);
- To provide the employee with benefits related to employment with us, including without limitation any employee gifts, awards, employee wellbeing initiatives, for the purpose of ensuring a safe workplace (vaccination details, accommodation details, where legally permissible and according to applicable law); for the purposes of compliance with law, for the purpose of encouraging and reporting on workplace parity such as diversity data and other affirmative action initiatives, etc.
- To provide our products and services to customers;
- To comply with any legal and regulatory obligations that we have to discharge;
- To establish, exercise or defend our legal rights or for the purpose of legal proceedings;
- Concerning employees or visitors to our premises, to record and monitor the use of our premises and/or

information technology systems in order to maintain its security and protect them against fraud or unauthorised entry;

- Use Personal Data and Personal Information for our legitimate business interests, such as operating our website, managing the efficient management and operation of our business, conducting marketing activities designed to improve the products and services we offer to the Data Subject (subject to obtaining additional consent as may be required by applicable Data Privacy Laws), and administering the security of our business (“Legitimate Business Interests”); and
- Use Personal Data and Personal Information to prevent and respond to actual or potential fraud or illegal activities.
- Internal Research: We may Process Personal Information for internal research for technological development and demonstration.
- Transactional: We may transfer Personal Information as an asset through a merger, acquisition, bankruptcy or other transaction in which a Third Party assumes control of the business in whole or in part. In such event, the Third Party cannot materially alter how it uses or shares the acquired Personal Information subject to certain exceptions.

We Process Personal Data and Personal Information based on the following legal bases:

- Performance of Contract: We process Personal Data and Personal Information, where necessary in order to take steps at the request prior to entering into a contract or for the performance of a contract. For instance, Processing of Personal Data and Personal Information for employment purposes (such as processing salary, administering benefits) or providing services to our customers which are necessary to execute the contract.
- HR Necessity: We may process Personal Data where necessary for human resources management implemented in accordance with the labour rules and LTM’s internal regulations for employees formulated according to the law or collective contracts signed according to the law.
- Consent: Where permitted under applicable local laws, We may (but usually do not) Process Personal Data, Personal Information or Sensitive Personal Data based on the prior freely given consent from the data subject for a specific purpose. In such cases, the data subject has the right to withdraw his/her consent at any time by contacting the details provided in this Notice as set out in Section 18 below. In certain limited circumstances and where permitted by the law, even after withdrawal of Data Subject consent, we may be entitled to continue processing Personal Data on the grounds of other legal bases where we have a lawful reason to do so and as notified to the data subject.. However, in certain jurisdictions, applicable local law may require that consent be obtained, and, in such circumstances, consent will be the lawful basis for which we process Personal Data.
- Legitimate Interests: We may process Personal Data / Personal Information where it is necessary for the purposes of our Legitimate Business Interests as a company, including for management purposes, which are outlined above, to prevent and respond to actual or potential fraud or illegal activities, except where such interests are overridden by the interests or fundamental rights and freedoms of the Data Subject which require protection of personal data, in particular where the data subject is under 18 years old. When “legitimate interests” are not a legal basis for processing under the applicable local law, we will rely on your consent.

- **Legal Obligations:** We may process your Personal Data and Personal Information where it is necessary in order to comply with applicable legal and/or regulatory obligations, establish, exercise or defend our legal rights or for the purpose of legal proceedings.
- **Other “Public Interest” Grounds:** We may process your Personal Data, Personal Information (or where relevant, your Sensitive Personal Data) on other public interest grounds where it is subject to regulatory requirements where Processing is necessary by Us for the performance of a task mandated by governmental authorities, regulatory authorities or any other law enforcing authorities in the public interest.

We will process your Personal Data for the following purposes and based on the following legal bases, respectively:

Purpose of Collection	Description	Lawful Basis
Pay your salary and register you for benefits	The information requested is necessary for the performance of our obligations under your employment contract. If you do not provide the information requested, we will be unable to pay your salary, provide or register you for benefits. In some circumstances, the information will also be processed to comply with our legal business obligations.	Performance of Contract
Pay taxes	We are legally obliged to pay certain taxes on your earnings, and we will use the information provided by you to meet our legal business obligations.	Legal Obligation
Background Verification	We engage third party vendors to carry out background verification checks including identity verification, educational verification, previous employment verification, dual employment verification and criminal verification (when permitted or required by the applicable law) to pursue the legitimate interest of the Company to ensure safety and high standards for staff and to comply with applicable legal requirements.	Legal Obligation; Legitimate Interests of LTM for employment opportunities or consent (when legitimate interest is not a legal basis for processing under local laws)
Nomination for death benefits	We will use your nomination for death benefits, to provide your nominee the death benefits eligible to you. If you do not provide the information requested, we will not have an indication of your wishes in the event of your death in service. The information is necessary to comply with our legal business obligations.	Legal Obligation
Staff administration	We keep employment records in line with industry practice including information relating to joining formalities, employment history, resumes, references, absences (for example, annual leave and sickness or injury), accidents, trainings and equal opportunities monitoring. The information is necessary for the performance of our obligations under your employment contract or to comply with our legal business obligations. We keep a copy of your employment contract and any correspondence with you in the event of your termination of employment to the extent legally required. In a number of cases, it is in our legitimate business interests to set up talent management processes. Under this obligation LTM hereby ensures data minimization and shall not keep your Personal Data for longer than statutorily required.	Performance of Contract; Legal Obligation
Performance, compensation and benefits	We process Personal Data as part of performance review processes and in relation to compensation, reward and benefits. We also keep employee learning and development records. The information is necessary for the performance of our obligations under your employment contract. In certain instances, it is in our legitimate business interest to set up adequate review processes tailored to the roles of the employees within LTM and to define and execute compensation schemes.	Performance of Contract; Legitimate Interest of LTM for employment opportunities or consent (when legitimate interest is not a legal basis for processing under local laws)

Travel, immigration and Expense	From time to time, we may process Personal Data and engage travel and immigration vendors to facilitate corporate travel, location transfers, validate corporate card expenses and relevant supporting in line with our travel, mobility and expense policies, as detailed in the Company intranet. It is in our legitimate business interest to manage travel and expenses.	Legitimate Interest of LTM for employment opportunities or consent (when legitimate interest is not a legal basis for processing under local laws)
Discipline, grievance, dismissal and for the establishment, exercise or defense of legal claims	From time to time, we may need to process Personal Data in connection with disciplinary, grievance and dismissal processes. It is our legitimate business interest to process these records to investigate facts, claims and grievances for internal purposes and to establish, exercise or defend LTM in legal or administrative procedures.	Legitimate Interest of LTM for employment opportunities or consent (when legitimate interest is not a legal basis for processing under local laws)
Expense Claim	From time to time, we may need to process your Personal Data in connection with processing your reimbursement claims (as per the LTM expense policy). This processing is necessary for the performance of our obligations under your employment contract	Performance of Contract
Monitoring and Surveillance	We monitor LTM provided computer, landlines/mobile telephone use and also, subject to prior notifications, carry out CCTV monitoring of key areas, as detailed in Information Security Policy. We also keep records of your hours of work by way of our access control system, as detailed in the Company intranet. It is our legitimate business interest to keep such records, for the safety and security of the Company and its staff.	Legitimate Interest of LTM for employment opportunities or consent (when legitimate interest is not a legal basis for processing under local laws)
Health and safety	From time to time, we may need to process your Personal Data to comply with our legal business obligations in relation to health and safety at the workplace.	Legal Obligation
Audit Compliance	We may process Personal Data as part of our audit processes and engage third party auditors, from time to time. We have ensured that only Personal Data necessary is processed during such audits in order to comply with applicable laws and to satisfy our legitimate business interests to conduct audits and internal investigations	Legitimate Interest of LTM for employment opportunities or consent (when legitimate interest is not a legal basis for processing under local laws)
Marketing	For our internal business processing, administrative, marketing and planning requirements.	Consent, Legitimate Interest of LTM for employment opportunities or consent (when legitimate interest is not a legal basis for processing under local laws)
Other Information	We may also process your • Vaccination details of the employee, • employee's family members • Diversity details • Insurance related information	To protect vital interests; Legitimate Interest of LTM for employment opportunities or consent (when legitimate interest is not a legal basis for processing under local laws) • Legal Obligation; Legitimate Interest of LTM for employment opportunities or consent (when legitimate interest is not a legal basis for processing under local laws) • Legal Obligation; Consent

You will, of course, inevitably be referred to in many Company documents and records that are produced by you and your colleagues and may be shared with clients in the course of carrying out your duties and the business of the Company. You should refer to the Data Privacy Policy, which is available on the intranet at https://www.ltm.com/privacy_policy/.

We may process your Personal Data (or where relevant, your Sensitive Personal Data) on other public interest grounds where we are subject to regulatory requirements and to the extent such processing is necessary by us for the performance of a task mandated by governmental authorities, regulatory authorities or any other law enforcing authorities in the public interest. We shall notify you prior to processing such data.

If we need to use your Personal Data for an unrelated purpose, we will notify you and we will explain the legal basis which allows us to do so without undue delay. Please note that we may process your Personal Data without your knowledge or consent, in compliance with the above rules, where this is required or permitted by law.

Processing Sensitive Personal Data

We only process Sensitive Personal Data where legally permissible. If so, the collection and further processing of Sensitive Personal Data the following can only be lawful if:

- The Data Subject has given explicit Consent or Explicit Written Consent (where applicable) to the processing of his/her Sensitive Personal Data for a specified purpose, or where the Data Subject is physically or legally incapable of giving consent, but the processing is necessary to protect a vital interest of the Data Subject for example, where emergency medical care is needed.
- Without explicit consent when such Processing of Sensitive Personal Data is specifically authorised or mandated by applicable local Data Privacy Laws.
- When the processing of Sensitive Personal Data is necessary for the establishment, exercise, or defence of the legal claims.

In addition, we may only process Sensitive Personal Data about employees or prospective candidates within the limits of the applicable laws of each country, for the following reasons:

- Where such processing is necessary for the purposes of carrying out the obligations and exercising specific rights of LTM or of the employee or candidate in the field of employment and social security and social protection law, for employment-related purposes, as authorised by law or a collective agreement providing appropriate safeguards for the protection of fundamental rights and interests of the employee or candidate.

Additional requirements from countries specific privacy laws:

- LTM shall process sensitive personal data where the below mentioned lawful grounds of processing for special categories of data is applicable:
 - Processing is necessary for compliance with any applicable regulatory, auditing, accounting, anti-money laundering or counter terrorist financing obligations or for the prevention or detection of any crime.
- For France: LTM does not process genetic, biometric data and data concerning health.
- LTM should process special categories of personal data if processing is authorized by (CNDP) Morocco¹.
- In case the LTM intends to process special categories of personal data (data related to Marital relationship, criminal offenses etc.), LTM shall ensure that it obtains prior permission from Ministry of Transport and Communications (MoTC). MoTC may include other types of personal data in the definition of special categories of data if misuse or disclosure of such data may cause serious harm to an individual².
- For Singapore: LTM shall ensure that National Registration Identification Number (NRIC) and other identification number like Birth Certificate numbers, Foreign Identification Numbers ("FIN") Work Permit

numbers are not collected, used or disclosed in Singapore except:

- where required under Singapore law or an exception under the Personal Data Protection Act 2012 applies; or
- where such collection, use and disclosure is necessary to accurately establish or verify the identities of Data Subjects to a high degree of fidelity.³
- LTM shall only use the name of the employee and only the last four digits of his or her social security number or an employee identification number other than a social security number, on the salary payslip⁴.

¹ Morocco – Law No 09-08, dated February 18, 2009

² Qatar – Law No. (13) of 2016 Concerning Personal Data Protection

³ Singapore – Personal Data Protection Act (PDPA)

- If LTM processes Sensitive Personal Data for reasons not contemplated by Section 7027(m) of the California Consumer Privacy Act Regulations, it will provide a notice of the right to limit the use of Sensitive Personal Data pursuant to those regulations.
- In the UK, LTM processes special category personal data for purposes connected to employment.
- The processing of the Sensitive Personal Data must be limited to the minimum necessary. Databases containing Sensitive Data may not be created without justification, but only for legitimate, specific, and consistent purposes. The consent obtained for the processing of Sensitive Personal Data must be freely given specific, informed; unambiguous and in writing (by handwritten or electronic signature, or any other means of authentication).
- For China: LTM shall implement encryption measures for storage and transmission of Sensitive Personal Data with regard to Chinese residents.
- For Belgium: Under Belgian law⁵, the following measures must thus be taken in case genetic, biometric or health data are processed by LTM:
 - A list must be drawn up of all categories of persons (e.g., the manager of a department, IT personnel, all members of a specific team) that will be able to access the data, together with their status in relation to the envisaged processing activity.
 - A nominative list of all those persons must be drawn up and disclosed to the Belgian Data Protection Authority upon the latter's first request.
 - It should be ensured that those persons are under an obligation of confidentiality with respect to the personal data concerned.
- For South Africa: In terms of the South African Protection of Personal Information Act 4 of 2013, LTM will not Process Sensitive Personal Data unless the:
 - Processing is carried out with the consent of a Data Subject;
 - Processing is necessary for the establishment, exercise or defence of a right or obligation in law;
 - Processing is necessary to comply with an obligation of international public law;
 - Processing is for historical, statistical or research purposes to the extent that—
- the purpose serves a public interest, and the Processing is necessary for the purpose concerned; or it appears to be impossible or would involve a disproportionate effort to ask for consent and sufficient guarantees are provided for to ensure that the processing does not adversely affect the individual privacy of the data subject to a disproportionate extent;

⁴ USA – California Consumer Protection Act (CCPA)

⁵ Belgium – Belgian Data Protection Act

- information has deliberately been made public by the Data Subject; or
- provisions related to the specific sets of Sensitive Personal Data as prescribed by sections 28 to 33 of the Act are, as the case may be, complied with.

- For Luxembourg: LTM is prohibited from Processing genetic data for the purpose of exercising its own specific rights in relation to employment law⁶.
 - LTM is prohibited from Processing employees' medical data (including vaccination details) except in order to comply with a legal obligation⁷.
 - LTM is not permitted to conduct a criminal history search. LTM can only ask candidates or employees to provide a criminal record, if certain conditions are fulfilled. LTM can only collect criminal record (Bulletin n°3 which includes convictions for certain offences and crimes) from the candidate himself/herself if LTM makes a written request which must be included in the job offer and if such request is justified with respect to the job's description⁸.
- For Denmark: LTM shall only process personal data related to criminal convictions under the explicit consent of the data subject, or where it is necessary for the purposes of a legitimate interest clearly overriding the interests of the data subject.⁹
- LTM shall only process personal data related to social security numbers when 1) it stems from the law, or 2) the data subject has given consent under Article 7 GDPR, or 3) where the conditions for processing personal data laid down in Article 9 (2) (a), (c), (b), (e) or (d) of the GDPR are met.¹⁰
- Processing of personal data in an employment context covered by Articles 6(1) and 9(1) of the GDPR may take place if the processing is necessary for compliance with the controller's or the data subject's employment obligations or rights laid down in other legislation or collective agreements.¹¹

We may process Sensitive Personal Data about its employees or prospective candidates for the following reasons:

- Information relating to your health such as disability status (where required or permitted by local law), in order to make any necessary accommodations during our interview process;
- Where required for your role, and where permitted or required by applicable laws, Personal Data such as OFCCP data, diversity data shall be collected

⁶ Luxembourg – Luxembourg Data Protection Act 2018

⁷ Luxembourg – Labour Code and Data Protection Authority Guidelines

⁸ Luxembourg – Law of 29 March 2013 on criminal records

⁹ Denmark – Danish Data Protection Act

¹⁰ Denmark – Danish Data Protection Act

¹¹ Denmark – Danish Data Protection Act

- Occasionally criminal record (where required or permitted by local law), for criminal background check upon request from our customers. LTM shall process such information only based on your prior explicit consent or legal authorization when consent is not a valid legal basis for processing;
- For employment-related purposes, if it is necessary to exercise rights or comply with legal obligations derived from labour law, social security and social protection law, and there is no reason to believe that the employee has an overriding legitimate interest in not processing the data.

When processing Sensitive Personal Data, we will take appropriate and specific measures to safeguard the interests of preserving adequate data security over Sensitive Personal Data, taking into account the industry standard, the cost of implementation and the nature, scope, context and purposes of processing as well as the risks of varying likelihood and severity for rights and freedoms of natural persons posed by the processing.

Personal Data of Individuals below 18 years

We process Personal Data or Sensitive Personal Data of any individuals below the age of 18 years only for travel, immigration purposes or when you are visiting our premises. If we are required to process Personal Data or Sensitive Personal Data of such individuals, then We shall do so by taking explicit consent from their legal guardians and from the minor if they have capacity to give consent, based on their age and maturity. If it comes to your knowledge that We have unintentionally collected or received Personal Data or Sensitive Personal Data about an individual below the age of 18 years directly from them, then please immediately notify Us in the contact details provided in this Notice (Section 17 below) and We will accordingly delete such information.

Note: We do not collect, use nor process Personal data of Individuals below 18 years on our website. If you are below the age of 18 years, then We do not want you to provide any of your Personal Data in our website.

With whom we share your Personal Data (the recipients/categories of the Personal Data)

- We may disclose some Personal Data/ Personal Information to affiliates within our corporate group under the following circumstances:
 - Personnel administration, employee work and business management purposes.
 - To provide service that is legally bound by a valid contract.
 - To carry out day-to-day business transactions.
 - To identify and contact the Data Subject.
 - To ensure compliance to local laws and regulations.
 - For Security Management purposes.
 - Events and Initiatives
- We may also share Personal Data/ Personal Information outside of the corporate group where we rely on Third Parties to assist in its processing activities, and we have satisfied legal requirements for such disclosure of the Personal Data. This includes:
 - Third Party agents/suppliers or contractors, bound by obligations of confidentiality, in connection with the processing of Personal Data/ Personal Information for the purposes described in this Notice. This includes IT and communication services providers.
 - Third Parties relevant to the products and services that we provide. This includes hard-ware or software manufacturers, other professional services providers, regulators, authorities and other governmental institutions.
- To the extent required by law, regulatory bodies, enforcement bodies or court order, we may disclose Personal Data/ Personal Information/ Sensitive Personal Data in order to comply with any legal/regulatory obligation. In such instances we might not notify you of such requests, unless permitted by the law.
- Where required for the performance of the role / task of employees of LTM role, and where permitted or required by applicable laws, business contact details and Personal Data / Personal Information of employees of LTMindree (E.g.: OFCCP data, personal contact details) may be shared with our clients and suppliers.
- Employees may reach out to the contact details provided in Section 17 of this Notice to know the name of the third parties to whom we have shared their Personal Data.
- With respect to disclosing Personal Data/ Personal Information to Third Parties, written contracts and data sharing agreements with Third Parties will include restrictions prohibiting the Third Party from retaining, using or disclosing Personal Data/ Personal Information for any purpose except performing the services specified in the contract or as otherwise permitted by applicable Data Privacy Laws.
- Where it discloses Personal Data/ Personal Information to Third Parties, LTM will seek to use Data Processors or Sub processors that are capable of providing sufficient guarantees to implement

appropriate technical and organizational measures in accordance with applicable Data Privacy Laws and shall put in place contractual mechanisms to ensure that the relevant Data Processor or Sub processor takes reasonable steps to ensure compliance with those measures.

- We have offices and operations in a number of international locations, and we share information between our group companies for business and administrative purposes through data processing agreements including the standard contractual clauses signed within the entity. Please click [here](#) to view the list of entities and branches of Larsen and Toubro.
- Where required or permitted by law, information may be provided to others, such as regulators and law enforcement agencies.
- Where required for your role, and where permitted or required by applicable laws, your business contact details and Personal Data (E.g.: OFCCP data, diversity data, personal contact details) may be shared with our clients and suppliers.
- We may also share your resume and background verification status to customers, upon request, to comply with our contractual obligations with these customers (when permitted or required by the applicable law).
- From time to time, we may consider corporate transactions such as a merger, acquisition, reorganization, asset sale, or similar. In these instances, we may transfer or allow access to information to enable the assessment and undertaking of that transaction. If we buy or sell any business or assets, Personal Data may be transferred to a third parties involved in the transaction.
- To comply with our statutory and other obligations and for the proper management of the LTM Group, LTM and our service providers, we may also provide information to other third parties, including, but not limited to, auditors, accountants, lawyers and other professional advisers, as well as to administrative authorities, courts, law enforcement and/or regulatory authorities, arbitrators, experts, adverse parties and/or their advisors. LTM hereby ensures that in case of sub processing of your Personal Data the obligations that LTM bears will be contractually reflected in our agreements with our partners, vendors and any other third party.
- LTM does not sell any Personal Data under any circumstances.

Retention and Disposal of Personal Data or Personal Information

How long we continue to hold your Personal Data/ Personal Information will vary depending principally on:

- Purposes identified in this Notice for using the Personal Data/ Personal Information– We will need to keep the information for as long as is necessary for the relevant purpose; and
- Legal obligations – laws or regulation set a minimum period for which We will have to keep your Personal Data/ Personal Information;
- Disposal of Personal Data/ Personal Information shall be handled with utmost care and shall be governed in accordance with reasonable data security practices as detailed by its internal policies governing data disposal;
- Personal Data/ Personal Information shall only be Processed for the period necessary for the purposes for which it was originally collected as per applicable law and as stated in the LTM Retention Policy.

Cross Border Transfer

We are part of Larsen and Toubro Group (www.larsentoubro.com) companies which is an international group of companies and, as such, We transfer Personal Data / Personal Information personal data concerning you to countries where LTM has operations, and in particular to India. We may transfer Personal Data between our group affiliates companies and data centers for the purposes described above. These data transfers are necessary to provide our products and services.

We may also transfer Personal Data on a need-to-know basis to our authorized third-party suppliers, or LTM customers and authorized business partners.

Where we transfer your Personal Data/ Personal Information/ Sensitive Personal Information outside of your jurisdiction, we will ensure that it is protected and transferred in a manner consistent with applicable Data Privacy Laws.

For transfers to our group companies, third parties, suppliers outside of the EEA, we use standard contractual clauses or an appropriate tool of transfer. You may reach out to us by contacting Us by using the contact details below as set out in Section 17 on if you would like more details about the tool/method used. ²

For transfers outside other jurisdictions, We ensure that there are relevant data processing agree-ments in line with the applicable Privacy laws signed between its Data exporting branch and its Data importing branch with appropriate responsibilities articulated.

For details regarding the transfer of data between jurisdictions, please refer to the Global Privacy Pol-icy which can be accessed here.

Security of Personal Data/ Personal Information/ Sensitive Personal Data

In order to comply with our data security obligations under applicable Data Privacy Laws, We have adopted the following physical, technical and organizational security measures to ensure the security of your Personal Data/ Personal Information and Sensitive Personal Data and PHI, taking into account the applicable industry standards, the costs of implementation and the nature, scope, context and purposes of processing as well as the risk of varying likelihood and severity for your rights and freedoms:

- That includes the prevention of their alteration, damage, loss, unauthorized processing or access, having regard to the nature of the data and the risks to which they are exposed by virtue of hu-man action or the physical or natural environment.
- We shall comply with the security safeguards as per our contractual and statutory requirements in consultation with its internal I.T department.
- The Office of Data Privacy and Chief Information Security Officer shall assess the security measures implemented to safeguard Personal Data, Personal Information and Sensitive Personal Da-ta on a regular basis and update the same, where required.
- All employees and contractors shall be imparted with mandatory Privacy training (e.g., Training on Embedding Privacy in Software Development etc.). Further confidentiality agreements and Non-Disclosure Agreements shall be signed by all employees and contractors on or before their joining date with LTM.
- We have implemented the following safeguards to ensure the Personal Data We collects, stores, processes and disclose is secure:
 - Physical Security Controls
 - Facility Perimeter, HD access reader, Data Centre, Video surveillance
 - IT Infrastructure Controls
 - Encryption, DLP, Data masking, controlled Portable ports, Access Control, Unauthorized soft-ware check, Data destruction, System Hygiene measures, Monitoring, User Access Management, Patch Management,

Vulnerability Management.

- We have implemented an incident and breach management procedure to ensure that exceptions in data privacy compliance are promptly reported to the Office of the Data Privacy and to the appointed Data Protection Officer. We have implemented industry standard security measures to keep your Personal Data secure and confidential, including and not limited to the following:
 - Limiting access to any Personal Data that may be submitted by you, to those LTM employees strictly on a need-to-know basis, such as to respond to your inquiry or request.
 - Implemented physical, electronic, administrative, technical and procedural safeguards that comply with all applicable laws and regulations to protect your Personal Data from unauthorized or inappropriate access, alteration, disclosure and destruction. You may refer to our Privacy Policy for details of technical and organizational measures. It is important for you to protect against unauthorized access to your password and to your computer.
 - Physical Security Controls: Facility Perimeter, HD access reader, Data Centre, Video surveillance
 - IT Infrastructure Controls: Encryption, DLP, Data masking, controlled Portable ports, Access Control, Unauthorized software check, Data destruction, System Hygiene measures, Monitoring, User Access Management, Patch Management, Vulnerability Management.
 - LTM employees who misuse Personal Data are subject to strict disciplinary action, as set forth in the work regulations, or dismissal (including for serious cause), as it is a violation of the Integrity Policy of LTM.

Monitoring

- a. Employee Monitoring. Where and only as far as permitted by applicable local laws, we may monitor the activities of employees or Third-Party individuals including visitors in our or customer premises through CCTV cameras. Such data shall be kept in accordance with LTM's Retention Policy, after considering other statutory compliance requirements.
Further, and in accordance with local law, we may monitor LTM provided company assets, including but not limited to computers, telephones, fax machines, voice mail systems, to employee and its networks, including but not limited to intranet/internet access, email, applications, while using such office equipment or networks. Consequently, the activities undertaken can include monitoring, interception, accessing, recording, disclosing, inspecting, reviewing, retrieving, printing and creating logs and audit trails containing your Personal Data. This will be done only where permitted by applicable law, notably according to labour law and law relating to communications secrecy.
- b. Investigations, Subject Access Requests and Legal Proceedings. Where and to the extent permitted and/or required by applicable laws, we may access or retake possession of any company assets (including without limitation LTM-issued laptops, phones, tablets, etc) and information contained therein (including but not limited to LTM email accounts, files and folders, company-installed chat applications, etc.) pursuant to one or more of the following:
 - Conducting an investigation (internal or external) into any employee misconduct, ethics and compliance violations or other violations or applicable laws and/or LTM policies.
 - Responding a to Subject Access Request (SAR) in order to identify any personal data relating to the data subject residing in any other employees' systems or files.
 - Pursuant to disclosure and discovery requirements available under applicable laws in the event of any legal proceedings.

We have industry standard security measures assist us to keep our systems and premises secure. The security measures implemented for the processing of Personal Data either routinely or occasionally (as appropriate), include:

- Email security – We have email security measures in place that involve automated scanning of incoming and outgoing emails for potential threats. Threats, such as phishing emails or malware may be escalated to IT for consideration.
- Activity logs – We have audit trail capabilities as part of our automated systems to track who accesses and amends data. This means that we have access to information about your usage of login credentials, websites and applications, which may be referred to in the event of an issue.

- CCTV – We operate CCTV to help keep our premises secure. Images of you may be captured as part of the CCTV operation, however, we only view images where an incident has occurred.
- We may also perform aggregated non-anonymous system scans to help improve
- LTM's services, tools and compliance. Any such scan will be proportional to the specific
- legitimate business interests of LTM and will be consistent with applicable local laws.
- Please refer to the Employee Monitoring Policy for more details

Sale of Personal Data

We do not sell your Personal Data for monetary consideration. However, we may allow certain third parties (such as online advertising services) to collect your browsing activity and certain other Personal Data via automated technologies on our website in exchange for non-monetary consideration. We may share the categories of Personal Data listed below in order to improve the performance of our website, to enhance your browsing experience, to provide you a more personalized browsing experience, and to improve our advertising efforts. You can view a full listing of those third-party cookies and opt-out of their use in our cookie policy.

For more information regarding the above, please refer to the LTM California Privacy Statement you can access here - <https://www.ltm.com/lti-california-privacy-policy/>.

Rights of Data Subjects/What Rights do I have?

You may have certain rights relating to your Personal Data provided for under applicable law, such as the right to request access to your Personal Data and the processing activities on the Personal Data.

- Receive information regarding the processing of your Personal Data
- Request access to your Personal Data and the processing activities on the Personal Data.
- Request that your Personal Data is rectified if it is inaccurate or incomplete
- Request erasure of your Personal Data in certain circumstances.
- Request that the processing of your Personal Data is restricted in certain circumstances.
- Object to processing of your Personal Data in certain circumstances.
- Receive your Personal Data provided to us as a controller in a structured, commonly used and machine-readable format in certain circumstances.
- Lodge a complaint with an applicable supervisory authority.
- Object to, and not to be subject to a decision based solely on, automated processing (including profiling), which produces legal effects or significantly affects you (if applicable).
- Withdraw your consent provided at any time by contacting us, where the processing is based on your (explicit) consent.

You have access to view/ extract/ rectify certain aspects of your Personal Data on the intranet portal (accessible post-onboarding) via the link [iCore.ltm.com](https://www.ltm.com/lti-california-privacy-policy/). Employees can access this portal available on the intranet in order to update, review or correct any information.

If you wish to receive more details or carry out any specific rectifications to your Personal Data, please contact our Data Privacy Officer at dataprotectionoffice@ltm.com.

To exercise the rights outlined above in respect of your Personal Data, you may write to dataprotectionoffice@ltm.com with the following information:

- Full Name:
- Email id:

- Data Subject Right you want to exercise:
- Relationship with LTM (job applicant, student, customer, contractor, employee of LTM, website visitor, Visitor to LTM, former employee of LTM, on behalf LTM's Data subject, on behalf of a Data subject below the age of 16)
- Country of Residence:
- Request Details:

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As part of processing your request, we require you to provide certain Personal Data about you in order to verify your identity. Additionally, in accordance with your rights, you may designate an authorized agent to make a request on your behalf, if permitted by applicable laws. In order to comply with your request, we will require the Personal Data referenced above to be used for identity verification purposes, as well as the name, email address, and telephone number of your authorized agent.

LTM kindly asks you to scrupulously assess your legitimate right(s) and interest(s) before raising any official request under our platform.

California Privacy Rights

The CCPA provides California residents with the right to request disclosure of the categories and specific pieces of Personal Information that the business collects, sells or discloses concerning California residents and we shall provide such information without charge to the requesting California resident after verifying the request. We are required to provide such information no more than twice in a 12-month period. Under the CCPA, "collects" includes information bought, rented, gathered, obtained received and accessed whether actively, passively or by observing the California resident, provided, however, that we are limited in terms of what we can disclose when such information is Sensitive Personal Data.

The CCPA requires that we provide data access and data portability to California residents.

The CCPA prohibits any agreement or contract that seeks to waive or limit California residents' rights under the CCPA.

Please contact the Data Privacy Officer if you are attempting to fulfil any of the above requests by writing to dataprotectionoffice@ltm.com with the following information:

- Full Name:
- Email id:
- Data Subject Right you want to exercise:
- Relationship with LTM (job applicant, student, customer, contractor, employee of LTM, website visitor, Visitor to LTM, former employee of LTM, on behalf LTM's Data subject, on behalf of a Data subject below the age of 16)
- Country of Residence:
- Request Details:

If you belong to any other jurisdiction that is not listed above, you may reach out to the us by contacting dataprotectionoffice@ltm.com.

California residents who provide Personal Information are entitled to request information about themselves that we shared with Third Parties for their own direct marketing purposes (if applicable), including the categories of information and the names and addresses of those businesses. We do not currently share the personal information of California residents with Third Parties for their own direct marketing purposes.

For more details regarding Data Subject Rights, please refer to the Global Privacy Policy that can be accessed [here](#).

Existence of Automated Profiling and Decision Making

We do not use your Personal Data to make decisions with legal or similar effects for you, based solely on the automated processing of your Personal Data. In case We will perform automated individual decision-making in the future, We will inform you prior to the processing and we will inform you on your rights, including your right to express your point of view and contest the decision.

Your Duty to inform us of changes

It is important that the Personal Data we hold about you is accurate and current. Please keep us informed if your Personal Data changes during your relationship with us. Alternatively, you can also update or rectify your Personal Data on the Employee Self Service portal if required.

Contact Details, Complaints and Grievances

If you have any questions, comments, or suggestions, complaints or grievances, or if you want to exercise your privacy rights or wish to raise or consult Us on any privacy issues, our use of Personal Data or Personal Information, you can contact our appointed Data Protection Officer ("DPO").

Complaints related to Personal Data and Personal Information protection and any communications regarding enforcement of your privacy rights should be directed to the Data Protection Officer at the following contact details:

Global Data Privacy Officer for LTM Limited:

Email: dataprotectionoffice@ltm.com

Address: Gate No. 5, L&T Technology Center, Saki Vihar Road, Powai, Mumbai – 400072 Data Privacy Office

Attention: Data Protection Officer Phone- +91 22 67766776

Data Privacy Officer for LTM Limited (Germany Branch) and European Representative: Email ID- dataprotectionoffice.eu@ltm.com

United Kingdom Representative:

Email ID- _dataprotectionoffice@ltm.com

Switzerland Representative

Email ID- dataprotectionoffice@ltm.com

United Arab Emirates

Email ID: dataprotectionoffice@ltm.com

South African Representative

Email ID- dataprotectionoffice@ltm.com

We will use reasonable efforts to respond your complaint within a reasonable time, usually within 30 days.

You may also raise a concern or lodge a complaint with the competent Supervisory Authority. The name and contact details of the Data Protection Authorities in the European Union can be found here.

You may reach out to the DPO Office (in the above-mentioned contact details) in the event you want a copy of this privacy notice in the local language of European countries where LTM has an office.

If you are in Australia, and we are unable to satisfactorily resolve your privacy concerns, you can contact the Office of the Australian Information Commissioner on their website www.oaic.gov.au.

Changes to our Privacy Notice

This privacy notice was last updated on November 14, 2022. This notice may be revised and updated from time to time. The most recent version of this notice will be available on iCore.ltm.com (accessible post-onboarding).

If you have any questions about this Notice, please contact Data Protection Officer of LTM at dataprotectionoffice@ltm.com. You may also refer to our LTM Global Privacy Policy and LTM California Privacy Statement published on the website for further information on

LTM's commitment towards privacy.

Candidate Name:

Signature:

Date:

LTM is a global technology consulting and digital solutions company that enables enterprises across industries to reimagine business models, accelerate innovation, and maximize growth by harnessing digital technologies. As a digital transformation partner to more than 700 clients, LTM brings extensive domain and technology expertise to help drive superior competitive differentiation, customer experiences, and business outcomes in a converging world. Powered by more than 85,000 talented and entrepreneurial professionals across 33 countries, LTM — a Larsen & Toubro Group company — combines the industry-acclaimed strengths of erstwhile Larsen & Toubro Infotech and Mindtree in solving the most complex business challenges and delivering transformation at scale. For more information, please visit www.ltm.com.

It's time to Outcreate

A large, abstract graphic composed of overlapping, wavy bands of red and orange, resembling a textured fabric or a dynamic wave, positioned in the lower half of the page.

